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SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS <i>OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30</i>				1. REQUISITION NUMBER PR15941532		PAGE 2 OF 45	
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER 19NP4026Q0014	
6. SOLICITATION ISSUE DATE May-04-2026		7. FOR SOLICITATION INFORMATION CALL		a. NAME Sanju Gurung		b. TELEPHONE NUMBER(No collect calls) 014234165	
8. OFFER DUE DATE/ LOCAL TIME June-03-2026, 17:00 Hrs		9. ISSUED BY American Embassy Kathmandu Bramha Cottage, Narayan Gopal Sadak, Maharajgunj, Kathmandu		CODE		10. THIS ACQUISITION IS ☒ UNRESTRICTED ☐ SET ASIDE: % FOR ☐ SMALL BUSINESS ☐ EMERGING SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN OWNED ☐ 8(A) NAICS: 238220 SIZE STD:	
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)		13b. RATING	
14. METHOD OF SOLICITATION ☐ RFQ ☐ IFB ☒ RFP		15. DELIVER TO: American Embassy Kathmandu Attn: General Services Officer Maharajgunj, Kathmandu <u>Email (ktmcontracts@state.gov)</u>		Code		16. Administered by: General Services Officer American Embassy Kathmandu Bramha Cottage, Narayan Gopal Sadak, Maharajgunj, Kathmandu	
17a. CONTRACTOR/OFFEROR CODE		CILITY CODE		PAYMENT WILL BE MADE BY Financial Management Officer American Embassy Kathmandu Bramha Cottage, Narayan Gopal Sadak, Maharajgunj, Kathmandu		17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER	
18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		19. ITEM NO.		20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTIT Y	
22. UNIT		23. UNIT PRICE		24. AMOUNT in US\$			
1.		Preventive Maintenance Service Contract of low voltage switchgear for U.S Embassy Nepal. SAM registration is mandatory for this solicitation. A valid SAM registration is condition for award. For SAM registration please visit http://www.sam.gov (Use Reverse and/or Attach Additional Sheets as Necessary)		1		ALL	
25. ACCOUNTING AND APPROPRIATION DATA		26. TOTAL AWARD AMOUNT (For Govt. Use Only)					
☒ 27a.SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED. ☐ 27b.CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED.							

☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN <u>2</u> COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED HEREIN..		☐ 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:	
30a. SIGNATURE OF OFFEROR/CONTRACTOR		31a. UNITED STATES OF AMERICA <i>(SIGNATURE OF CONTRACTING OFFICER)</i>	
30b. NAME AND TITLE OF SIGNER <i>(TYPE OR PRINT)</i>	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or Print)	31c. DATE SIGNED
		Albina Collingham	

SECTION 1 - THE SCHEDULE
CONTINUATION TO SF-1449
19NP4026Q0014
PRICES, BLOCK 23

JAMES ZADROGA 9/11 VICTIMS HEALTH AND COMPENSATION ACT OF 2010 NOTICE: UNLESS A WAIVER OR EXCEPTION APPLIES, PAYMENTS SUBSEQUENT TO THIS PROCUREMENT ARE SUBJECT TO AN EXCISE TAX OF 2% PURSUANT TO 26 U.S.C. 5000C.

I. PERFORMANCE WORK STATEMENT

- A. The purpose of this firm fixed price purchase order is to for **Preventive Maintenance Service Contract of low voltage switchgear for U.S Embassy Nepal.** in accordance with Attachment A.
- B. The contract will be for a one-year period from the date of the contract award, with four-year options.

QUALITY ASSURANCE AND SURVEILLANCE PLAN (QASP)

This plan provides an effective method to promote satisfactory contractor performance. The QASP provides a method for the Contracting Officer's Representative (COR) to monitor Contractor performance, advise the Contractor of unsatisfactory performance, and notify the Contracting Officer of continued unsatisfactory performance. The Contractor, not the Government, is responsible for management and quality control to meet the terms of the contract. The role of the Government is to monitor quality to ensure that contract standards are achieved.

Performance Objective	Scope of Work Paragraphs	Performance Threshold
<u>Services.</u> Performs all Preventive Maintenance Service Contract of low voltage switchgear for U.S Embassy Nepal services set forth in the scope of work.	A thru B, including attachment A – Page Nos. 33-45	All required services are performed and no more than one customer complaint is received per month.

1. SURVEILLANCE. The COR will receive and document all complaints from Government personnel regarding the services provided. If appropriate, the COR will send the complaints to the Contractor for corrective action.
2. STANDARD. The performance standard is that the Government receives no more than one (1) customer complaint per month. The COR shall notify the Contracting Officer of the complaints so that the Contracting Officer may take appropriate action to enforce the inspection clause ([FAR](#)

[52.212.4](#), Contract Terms and Conditions - Commercial Products and Commercial Services (NOV 2023), if any of the services exceed the standard.

3. PROCEDURES.

- (a) If any Government personnel observe unacceptable services, either incomplete work or required services not being performed they should immediately contact the COR.
- (b) The COR will complete appropriate documentation to record the complaint.
- (c) If the COR determines the complaint is invalid, the COR will advise the complainant. The COR will retain the annotated copy of the written complaint for his/her files.
- (d) If the COR determines the complaint is valid, the COR will inform the Contractor and give the Contractor additional time to correct the defect, if additional time is available. The COR shall determine how much time is reasonable.
- (e) The COR shall, as a minimum, orally notify the Contractor of any valid complaints.
- (f) If the Contractor disagrees with the complaint after investigation of the site and challenges the validity of the complaint, the Contractor will notify the COR. The COR will review the matter to determine the validity of the complaint.
- (g) The COR will consider complaints as resolved unless notified otherwise by the complainant.
- (h) Repeat customer complaints are not permitted for any services. If a repeat customer complaint is received for the same deficiency during the service period, the COR will contact the Contracting Officer for appropriate action under the Inspection clause.

II. PRICING

The contractor shall include VAT as a separate charge on the invoice and as separate line items.

The rates below include all costs associated with providing preventive maintenance services in accordance with the attached scope of work, and the manufacturer's warranty including materials, labor, insurance (see FAR 52.228-4 and 52.228-5), overhead, profit and GST (if applicable).

2.1. Base Year. The Contractor shall provide the services shown below for the base period of the contract and continuing for a period of 12 months.

CLIN	Description	type of services	No. of service	Unit price / service (\$)	Total per year (\$)
001	Preventive Maintenance Service Contract of low voltage switchgear for U.S Embassy Nepal	Annual	1		
002	Applicable 13% VAT				
	Total cost Base Year				

2.2. Option Year 1. The Contractor shall provide the services shown below for Option Year 1 of the contract and continuing for a period of 12 months.

CLIN	Description	type of services	No. of service	Unit price / service (\$)	Total per year (\$)
101	Preventive Maintenance Service Contract of low voltage switchgear for U.S Embassy Nepal	Annual	1		
002	Applicable 13% VAT				
	Total cost Base Year				

2.3. Option Year 2. The Contractor shall provide the services shown below for option Year 2 of the contract, and continuing for a period of 12 months.

CLIN	Description	type of services	No. of service	Unit price / service (\$)	Total per year (\$)
201	Preventive Maintenance Service Contract of low voltage switchgear for U.S Embassy Nepal	Annual	1		
	Applicable 13% VAT				
	Total cost 2nd Year				

2.4. Option Year 3. The Contractor shall provide the services shown below for Option Year 3 of the contract, and continuing for a period of 12 months

CLIN	Description	type of services	No. of service	Unit price / service (\$)	Total per year (\$)
301	Preventive Maintenance Service Contract of low voltage switchgear for U.S Embassy Nepal	Annual	1		
	Applicable 13% VAT				
	Total cost 3rd Year				

2.5. Option Year 4. The Contractor shall provide the services shown below for Option Year 4 of the contract, and continuing for a period of 12 months

CLIN	Description	type of services	No. of service	Unit price / service (\$)	Total per year (\$)
401	Preventive Maintenance Service Contract of low voltage switchgear for U.S Embassy Nepal	Annual	1		
	Applicable 13% VAT				
	Total cost 4th Year				

Pricing must be in NPR and/or USD.

5.6. Total for all years:

Base Year	\$ _____
Option Year 1	\$ _____
Option Year 2	\$ _____
Option Year 3	\$ _____
Option Year 4	\$ _____
Extension 6M	\$ _____
TOTAL	\$ _____

2.7 Repair option. Repairs are NOT included under this agreement (see 7.1.3) and are to be done outside this contract. However, we would like to have current labor rates in the event that there is an issue discovered during the preventive maintenance of the specified equipment. Please provide your current labor rates in the Repair Option fields below. As stated in 7.1.3 any necessary repairs or parts will be submitted for approval and then billed against a separate PO. The Contractor is not approved to do any additional work without approval.

Repair Labor Rates

Base Year	\$ _____ /hr
Option Year 1	\$ _____ /hr
Option Year 2	\$ _____ /hr
Option Year 3	\$ _____ /hr
Option Year 4	\$ _____ /hr
Extension 6M	\$ _____ /hr

2.8 Emergency Service Option. Emergency Service is NOT included under this agreement and will be billed outside the contract. However, we would like to have the rates in the event of an emergency. Emergency Service, with a four-hour response time, must be available 24-hours per day, 365 days a year. Submit cost for Emergency Services below. Please indicate how the emergency service will be billed (hourly, trip charge, etc).

Emergency Service Rates

Base Year	\$ _____ / hr
Option Year 1	\$ _____ / hr
Option Year 2	\$ _____ / hr
Option Year 3	\$ _____ / hr
Option Year 4	\$ _____ / hr
Extension 6M	\$ _____ / hr

III. VALUE ADDED TAX

VAT VERSION A

VALUE ADDED TAX. Value Added Tax (VAT) is not included in the CLIN rates. Instead, it will be priced as a separate Line Item in the contract and on Invoices. Local law dictates the portion of the contract price that is subject to VAT; this percentage is multiplied only against that portion. It is reflected for each performance period. The portions of the solicitation subject to VAT are:

NOTICE TO PROCEED

After Contract award and submission of acceptable insurance certificates and copies of all applicable licenses and permits, the Contracting Officer will issue a Notice to Proceed. The Notice to Proceed will establish a date (a minimum of ten (10) days from date of Contract award unless the Contractor agrees to an earlier date) on which performance shall start.

CONTINUATION TO SF-1449,
RFQ NUMBER **19NP4026Q0014**
SCHEDULE OF SUPPLIES/SERVICES, BLOCK 20
DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

SECTION 2 - CONTRACT CLAUSES

52.212-4 CONTRACT TERMS AND CONDITIONS – COMMERCIAL ITEMS
(DEVIATION) (JAN 2026) IS INCORPORATED BY REFERENCE. (SEE SF-
1449, BLOCK 27A)

52.212-5 [Reserved]

52.229-12 TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND
REPRESENTATION (FEB 2021)

(a) *Definitions.* As used in this clause—

Foreign person means any person other than a United States person.

United States person, as defined in [26 U.S.C. 7701\(a\)\(30\)](#), means—

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of [26 U.S.C. 7701\(a\)\(31\)](#)); and
- (5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) This clause applies only to foreign persons. It implements [26 U.S.C. 5000C](#) and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c)

(1) If the Contractor is a foreign person and has only a partial or no exemption to the withholding, the Contractor shall include the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, with each voucher or invoice submitted under this contract throughout the period in which this status is applicable. The excise tax withholding is applied at the payment level, not at the contract level. The Contractor should revise each IRS Form W-14 submission to reflect the exemption (if any) that applies to that particular invoice, such as a different exemption applying. In the absence of a completed IRS Form W-14 accompanying a payment request, the default withholding percentage is 2 percent for the section 5000C withholding for that payment request. Information about IRS Form W-14 and its separate instructions is available via the internet at www.irs.gov/w14.

(2) If the Contractor is a foreign person and has indicated in its offer in the provision [52.229-11](#), Tax on Certain Foreign Procurements—Notice and Representation, that it is fully exempt from the withholding, and certified the full exemption on the IRS Form W-14, and if that full exemption no longer applies due to a change in circumstances during the performance of the contract that causes the Contractor to become subject to the withholding for the 2 percent excise tax then the Contractor shall—

(i) Notify the Contracting Officer within 30 days of a change in circumstances that causes the Contractor to be subject to the excise tax withholding under [26 U.S.C. 5000C](#); and

(ii) Comply with paragraph (c)(1) of this clause.

(d) The Government will withhold a full 2 percent of each payment unless the Contractor claims an exemption. If the Contractor enters a ratio in Line 12 of the IRS Form W-14, the result of Line 11 divided by Line 10, the Government will withhold from each payment an amount equal to 2 percent multiplied by the contract ratio. If the Contractor marks box 9 of the IRS Form W-14 (rather than completes Lines 10 through 12), the Contractor must identify and enter the specific exempt and nonexempt amounts in Line 15 of the IRS Form W-14; the Government will then withhold 2 percent only from the nonexempt amount. See the IRS Form W-14 and its instructions.

(e) Exemptions from the withholding under this clause are described at 26 CFR 1.5000C-1(d)(5) through (7). Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the [26 U.S.C. 5000C](#) tax are adjudicated by the IRS as the [26 U.S.C. 5000C](#) tax is a tax matter, not a contract issue.

(f) Taxes imposed under [26 U.S.C. 5000C](#) may not be—

(1) Included in the contract price; nor

(2) Reimbursed.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of clause)

ADDENDUM TO CONTRACT CLAUSES
FAR AND DOSAR CLAUSES NOT PRESCRIBED IN PART 12

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at: Acquisition.gov or Revolutionary FAR Overhaul. Note that this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at e-CFR to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Microsoft Bing or Yahoo) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATIONS (FAR) CLAUSES ARE
INCORPORATED BY REFERENCE:

<u>CLAUSE</u>	<u>TITLE AND DATE</u>
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS (NOV 2023)
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS (JAN 2017)
52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (JAN 2011)
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (DEVIATION) (JAN 2026)
52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (DEVIATION) (JAN 2026)
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS MAINTENANCE (DEVIATION) (JAN 2026)
52.217-2	CANCELLATION UNDER MULTIYEAR CONTRACTS (OCT 1997)
52.222-19	CHILD LABOR-COOPERATION WITH AUTHORITIES AND REMEDIES (DEVIATION) (FEB 2026)
52.225-14	INCONSISTENCY BETWEEN ENGLISH VERSION AND TRANSLATION OF CONTRACT (FEB 2000)
52.228-3	WORKERS' COMPENSATION INSURANCE (DEFENSE BASE ACT)

- 52.228-5 INSURANCE - WORK ON A GOVERNMENT INSTALLATION
- 52.229-6 TAXES - FOREIGN FIXED PRICE CONTRACTS
- 52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER-SYSTEM FOR AWARD MANAGEMENT (OCT 2018)
- 52.232-34 PAYMENT BY ELECTRONIC FUNDS TRANSFER-OTHER THAN SYSTEM FOR AWARD MANAGEMENT (JUL 2013)
- 52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUN 2013)
- 52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023)
- 52.233-4 APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (DEVIATION) (JAN 2026)
- 52.244-6 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION) (JAN 2026)

THE FOLLOWING FAR CLAUSES ARE PROVIDED IN FULL TEXT:

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the performance period of the contract.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within the performance period of the contract or within 30 days after funds for the option year become available, whichever is later.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed

(End of clause)

52.232-19 AVAILABILITY OF FUNDS FOR THE NEXT FISCAL YEAR (APR 1984)

Funds are not presently available for performance under this contract beyond September 30 of the current calendar year. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond September 30 of the current calendar year, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

THE FOLLOWING DOSAR CLAUSES ARE PROVIDED IN FULL TEXT:

652.204-70 DEPARTMENT OF STATE PERSONAL IDENTIFICATION CARD
ISSUANCE (FEB 2015)

(a) The Contractor shall comply with the Department of State (DOS) Personal Identification Card Policy and Procedures for all employees performing under this contract who require frequent and continuing access to DOS facilities, or information systems. The Contractor shall insert the substance of this clause in all subcontracts when the subcontractor's employees will require frequent and continuing access to DOS facilities, or information systems.

(b) The DOS Personal Identification Card Policy and Procedures may be accessed at <http://www.state.gov/m/ds/rls/rpt/c21664.htm>.

(End of clause)

CONTRACTOR IDENTIFICATION (JULY 2008)

Contract performance may require contractor personnel to attend meetings with government personnel and the public, work within government offices, and/or utilize government email.

Contractor personnel must take the following actions to identify themselves as non-federal employees:

- 1) Use an email signature block that shows name, the office being supported and company affiliation (e.g. "John Smith, Office of Human Resources, ACME Corporation Support Contractor");
- 2) Clearly identify themselves and their contractor affiliation in meetings;
- 3) Identify their contractor affiliation in Departmental e-mail and phone listings whenever contractor personnel are included in those listings; and

- 4) Contractor personnel may not utilize Department of State logos or indicia on business cards.

(End of clause)

652.215-70 EXAMINATION OF RECORDS

(a) With respect to matters related to this contract or a subcontract hereunder, the Department of State Office of the Inspector General, or an authorized representative, shall have upon request:

(1) Complete, prompt, and free access to all Contractor and Subcontractor files (in any format), documents, records, data, premises, and employees, except as limited by law; and

(2) The right to interview any current Contractor and Subcontractor personnel, individually and directly, with respect to such matters.

(b) This clause may not be construed to require the contractor or any subcontractor to create or maintain any record that the contractor or subcontractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(c) The Contractor shall insert a clause containing all the terms of this clause, including this [paragraph \(c\)](#), in all subcontracts under this contract other than acquisitions described in Federal Acquisition Regulation 15.209(b)(1).

652.225-71 SECTION 8(A) OF THE EXPORT ADMINISTRATION ACT OF 1979, AS AMENDED (AUG 1999)

(a) Section 8(a) of the U.S. Export Administration Act of 1979, as amended (50 U.S.C. 2407(a)), prohibits compliance by U.S. persons with any boycott fostered by a foreign country against a country which is friendly to the United States and which is not itself the object of any form of boycott pursuant to United States law or regulation. The Boycott of Israel by Arab League countries is such a boycott, and therefore, the following actions, if taken with intent to comply with, further, or support the Arab League Boycott of Israel, are prohibited activities under the Export Administration Act:

(1) Refusing, or requiring any U.S. person to refuse to do business with or in Israel, with any Israeli concern, or with any national or resident of Israel, or with any other person, pursuant to an agreement of, or a request from or on behalf of a boycotting country;

(2) Refusing, or requiring any U.S. person to refuse to employ or otherwise discriminating against any person on the basis of race, religion, sex, or national origin of that person or of any owner, officer, director, or employee of such person;

(3) Furnishing information with respect to the race, religion, or national origin of any U.S. person or of any owner, officer, director, or employee of such U.S. person;

(4) Furnishing information about whether any person has, has had, or proposes to have any business relationship (including a relationship by way of sale, purchase, legal or commercial representation, shipping or other transport, insurance, investment, or supply) with or in the State of Israel, with any business concern organized under the laws of the State of Israel, with any Israeli

national or resident, or with any person which is known or believed to be restricted from having any business relationship with or in Israel;

(5) Furnishing information about whether any person is a member of, has made contributions to, or is otherwise associated with or involved in the activities of any charitable or fraternal organization which supports the State of Israel; and,

(6) Paying, honoring, confirming, or otherwise implementing letter of credit which contains any condition or requirement against doing business with the State of Israel.

(b) Under Section 8(a), the following types of activities are not forbidden “compliance with the boycott”, and are therefore exempted from Section 8(a)’s prohibitions listed in paragraphs (a)(1) through (6) above:

(1) Complying or agreeing to comply with requirements:

(i) Prohibiting the import of goods or services from Israel or goods produced or services provided by any business concern organized under the laws of Israel or by nationals or residents of Israel; or,

(ii) Prohibiting the shipment of goods to Israel on a carrier of Israel, or by a route other than that prescribed by the boycotting country or the recipient of the shipment;

(2) Complying or agreeing to comply with import and shipping document requirements with respect to the country of origin, the name of the carrier and route of shipment, the name of the supplier of the shipment or the name of the provider of other services, except that no information knowingly furnished or conveyed in response to such requirements may be stated in negative, blacklisting, or similar exclusionary terms, other than with respect to carriers or route of shipments as may be permitted by such regulations in order to comply with precautionary requirements protecting against war risks and confiscation;

(3) Complying or agreeing to comply in the normal course of business with the unilateral and specific selection by a boycotting country, or national or resident thereof, of carriers, insurance, suppliers of services to be performed within the boycotting country or specific goods which, in the normal course of business, are identifiable by source when imported into the boycotting country;

(4) Complying or agreeing to comply with the export requirements of the boycotting country relating to shipments or transshipments of exports to Israel, to any business concern of or organized under the laws of Israel, or to any national or resident of Israel;

(5) Compliance by an individual or agreement by an individual to comply with the immigration or passport requirements of any country with respect to such individual or any member of such individual’s family or with requests for information regarding requirements of employment of such individual within the boycotting country; and,

(6) Compliance by a U.S. person resident in a foreign country or agreement by such person to comply with the laws of that country with respect to his or her activities exclusively therein, and such regulations may contain exceptions for such resident complying with the laws or regulations of that foreign country governing imports into such country of trademarked, trade named, or similarly specifically identifiable products, or components of products for his or her own use, including the performance of contractual services within that country, as may be defined by such regulations.

(End of clause)

652.229-70 EXCISE TAX EXEMPTION STATEMENT FOR CONTRACTORS WITHIN THE UNITED STATES (JUL 1988)

This is to certify that the item(s) covered by this contract is/are for export solely for the use of the U.S. Foreign Service Post identified in the contract schedule.

The Contractor shall use a photocopy of this contract as evidence of intent to export. Final proof of exportation may be obtained from the agent handling the shipment. Such proof shall be accepted in lieu of payment of excise tax.

(End of clause)

652.232-70 PAYMENT SCHEDULE AND INVOICE SUBMISSION (FIXED-PRICE) (AUG 1999)

(a) General. The Government shall pay the Contractor as full compensation for all work required, performed, and accepted under this contract the firm fixed-price stated in this contract.

(b) Invoice Submission. The Contractor shall submit invoices in an original and copies to the office identified in Block 18b of the SF-1449. To constitute a proper invoice, the invoice shall include all the items required by FAR 32.905(e).

The Contractor shall show Value Added Tax (VAT) as a separate item on invoices submitted for payment.

**Finance Management Office
US Embassy, Maharajgunj
Kathmandu, Nepal**

(c) Contractor Remittance Address. The Government will make payment to the contractor's address stated on the cover page of this contract, unless a separate remittance address is shown below:

(End of clause)

652.237-72 OBSERVANCE OF LEGAL HOLIDAYS AND ADMINISTRATIVE LEAVE (FEB 2015)

(a) The Department of State observes the following days as holidays:

	Date	Day	Event
(A)	January 01, 2026	Thursday	New Year's Day
(A)	January 19, 2026	Monday	Birthday of Martin Luther King Jr./ Sonam Lohsar
(A)	February 16, 2026	Monday	Washington's Birthday

(N)	March 02, 2026	Monday	Holi Purnima
(N)	April 14, 2026	Tuesday	Nepali New Year
(N)	May 01, 2026	Friday	Buddha Jayanti/International Labor Day
(A)	May 25, 2026	Monday	Memorial Day
(A)	June 19, 2026	Friday	Juneteenth National Independence Day
(A)	July 03, 2026	Friday	Independence Day
(N)	September 04, 2026	Friday	Shree Krishna Janmastami
(A)	September 07, 2026	Monday	Labor Day
(A)	October 12, 2026	Monday	Columbus Day
(N)	October 19, 2026	Monday	Astami (Dashain)
(N)	October 20, 2026	Tuesday	Nawami (Dashain)
(N)	October 21, 2026	Wednesday	Dashami (Dashain)
(N)	October 22, 2026	Thursday	Ekadashi (Dashain)
(N)	November 09, 2026	Monday	Gai Puja (Tihar)
(N)	November 10, 2026	Tuesday	Gobardhan Puja (Tihar)
(A)	November 11, 2026	Wednesday	Veterans Day/Bhai Tika (Tihar)
(A)	November 26, 2026	Thursday	Thanksgiving Day
(A)	December 25, 2026	Friday	Christmas Day

Note: (A) = American Holiday
(N) = Nepali Holiday

Any other day designated by Federal law, Executive Order, or Presidential Proclamation.

(b) When New Year's Day, Independence Day, Veterans Day or Christmas Day falls on a Sunday, the following Monday is observed; if it falls on Saturday the preceding Friday is observed. Observance of such days by Government personnel shall not be cause for additional period of performance or entitlement to compensation except as set forth in the contract. If the contractor's personnel work on a holiday, no form of holiday or other premium compensation will be reimbursed either as a direct or indirect cost, unless authorized pursuant to an overtime clause elsewhere in this contract.

(c) When the Department of State grants administrative leave to its Government employees, assigned contractor personnel in Government facilities shall also be dismissed. However, the contractor agrees to continue to provide sufficient personnel to perform round-the-clock requirements of critical tasks already in operation or scheduled, and shall be guided by the instructions issued by the contracting officer or his/her duly authorized representative.

(d) For fixed-price contracts, if services are not required or provided because the building is closed due to inclement weather, unanticipated holidays declared by the President, failure of Congress to appropriate funds, or similar reasons, deductions will be computed as follows:

(1) The deduction rate in dollars per day will be equal to the per month contract price divided by 21 days per month.

(2) The deduction rate in dollars per day will be multiplied by the number of days services are not required or provided.

If services are provided for portions of days, appropriate adjustment will be made by the contracting officer to ensure that the contractor is compensated for services provided.

(e) If administrative leave is granted to contractor personnel as a result of conditions stipulated in any "Excusable Delays" clause of this contract, it will be without loss to the contractor. The cost

of salaries and wages to the contractor for the period of any such excused absence shall be a reimbursable item of direct cost hereunder for employees whose regular time is normally charged, and a reimbursable item of indirect cost for employees whose time is normally charged indirectly in accordance with the contractors accounting policy.

(End of clause)

652.242-70 CONTRACTING OFFICER'S REPRESENTATIVE (COR) AUG 1999)

(a) The Contracting Officer may designate in writing one or more Government employees, by name or position title, to take action for the Contracting Officer under this contract. Each designee shall be identified as a Contracting Officer's Representative (COR). Such designation(s) shall specify the scope and limitations of the authority so delegated; provided, that the designee shall not change the terms or conditions of the contract, unless the COR is a warranted Contracting Officer and this authority is delegated in the designation.

The COR for this contract is Electrical Engineer Supervisor.

(End of clause)

652.242-73 AUTHORIZATION AND PERFORMANCE (AUG 1999)

(a) The Contractor warrants the following:

(1) That is has obtained authorization to operate and do business in the country or countries in which this contract will be performed;

(2) That is has obtained all necessary licenses and permits required to perform this contract; and,

(3) That it shall comply fully with all laws, decrees, labor standards, and regulations of said country or countries during the performance of this contract.

(b) If the party actually performing the work will be a subcontractor or joint venture partner, then such subcontractor or joint venture partner agrees to the requirements of paragraph (a) of this clause.

652.243-70 NOTICES (AUG 1999)

Any notice or request relating to this contract given by either party to the other shall be in writing. Said notice or request shall be mailed or delivered by hand to the other party at the address provided in the schedule of the contract. All modifications to the contract must be made in writing by the Contracting Officer.

SECTION 3 - SOLICITATION PROVISIONS

52.212-1 INSTRUCTIONS TO OFFERORS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023) IS INCORPORATED BY REFERENCE (SEE SF-1449, BLOCK 27A)

ADDENDUM TO 52.212-1

A. Summary of Instructions. Each offer must consist of the following:

A.1. A completed solicitation, in which the SF-1449 cover page (blocks 12, 17, 19-24, and 30 as appropriate), and Section 1 has been filled out.

The Offeror shall include Defense Base Act (DBA) insurance premium costs covering employees. The offeror may obtain DBA insurance directly from any Department of Labor approved providers at the DOL website at <http://www.dol.gov/owcp/dlhwc/lscarrier.htm>

(1) The offeror shall provide proof of SAM registration to include the SAM UEI number.

2. List of clients over the past three years, demonstrating prior experience with relevant past performance information and references (provide dates of contracts, places of performance, value of contracts, contact names, telephone and fax numbers and email addresses). If the offeror has not performed comparable services in Nepal then the offeror shall provide its international experience. Offerors are advised that the past performance information requested above may be discussed with the client's contact person. In addition, the client's contact person may be asked to comment on the offeror's:

- Quality of services provided under the contract;
- Compliance with contract terms and conditions;
- Effectiveness of management;
- Willingness to cooperate with and assist the customer in routine matters, and when confronted by unexpected difficulties; and
- Business integrity / business conduct.

The Government will use past performance information primarily to assess an offeror's capability to meet the solicitation performance requirements, including the relevance and successful performance of the offeror's work experience. The Government may also use this data to evaluate the credibility of the offeror's proposal. In addition, the Contracting Officer may use past performance information in making a determination of responsibility.

3. Evidence that the offeror/quoter can provide the necessary personnel, equipment, and financial resources needed to perform the work;
4. The offeror shall address its plan to obtain all licenses and permits required by local law (see DOSAR 652.242-73 in Section 2). If offeror already possesses the locally required licenses and permits, a copy shall be provided.

6. The offeror's strategic plan for Preventive Maintenance Service Contract of low voltage switchgear for U.S Embassy Nepal services to include but not limited to:
- (a) A work plan taking into account all work elements in Section 1, Performance Work Statement.
 - (b) Identify types and quantities of equipment, supplies and materials required for performance of services under this contract. Identify if the offeror already possesses the listed items and their condition for suitability and if not already possessed or inadequate for use how and when the items will be obtained;
 - (c) Plan of ensuring quality of services including but not limited to contract administration and oversight; and
 - (d) (1) If insurance is required by the solicitation, a copy of the Certificate of Insurance(s), **or** (2) a statement that the contractor will get the required insurance, and the name of the insurance provider to be used.
 - a copy of the Certificate of Insurance, or
 - a statement that the contractor will get the required insurance, and the name of the insurance provider to be used.
 - Company brochure
 - Client list

7. CONTRACTOR QUALIFICATIONS

- **Licensing:** The contractor must be a licensed electrical contractor working on electrical switchgear maintenance and repair.
- **Relevant Experience:** The contractor must demonstrate a proven track record in the maintenance, servicing, and repair of electrical switchgear systems of similar type and scale as those listed in this SOW.
- **Minimum Experience:** The contractor must have a minimum of five (5) years of documented experience in the maintenance and servicing of low voltage air circuit breaker (ACB) switchboards, busbar systems, Human-Machine Interface (HMI) systems, and related electrical distribution equipment.
- **Project References:** The contractor shall provide references for at least three (3) projects completed within the past five (5) years that involved preventive maintenance of low voltage switchgear systems, including ACBs, busbars, PLC- HMI, Transfer switch components, of comparable size and complexity.
- **Qualified Personnel:** All work must be performed by qualified, licensed electricians or technicians with specific training and experience in low voltage switchgear maintenance. The contractor shall submit resumes and certifications for all key personnel assigned to this project.

ADDENDUM TO SOLICITATION PROVISIONS
FAR AND DOSAR PROVISIONS NOT PRESCRIBED IN PART 12

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE
(FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at [Acquisition.gov](https://www.acquisition.gov) this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at [e-CFR](#) to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATION SOLICITATION PROVISIONS ARE INCORPORATED BY REFERENCE:

PROVISION TITLE AND DATE

- | | |
|-----------|--|
| 52.204-7 | SYSTEM FOR AWARD MANAGEMENT (NOV 2024) |
| 52.212-1 | INSTRUCTIONS TO OFFERORS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023) |
| 52.214-34 | SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE (APR 1991) |
| 52.237-1 | SITE VISIT (APR 1984) |

The site visit will be held on 20/May/2026 at 10:30 at Chancery compound, U.S Embassy, Maharaigunj. Prospective offerors/quoters should contact gurungs10@state for additional information or to arrange entry to the building.

THE FOLLOWING DOSAR PROVISION(S) IS/ARE PROVIDED IN FULL TEXT:

652.206-70 ADVOCATE FOR COMPETITION/OMBUDSMAN (FEB 2015)

(a) The Department of State's Advocate for Competition is responsible for assisting industry in removing restrictive requirements from Department of State solicitations and removing barriers to full and open competition and use of commercial items. If such a solicitation is considered competitively restrictive or does not appear properly conducive to competition and commercial practices, potential offerors are encouraged first to contact the contracting office for the solicitation. If concerns remain unresolved, contact:

- (1) For solicitations issued by the Office of Acquisition Management (A/GA/AMD) or a Regional Procurement Support Office, the A/GA/AMD Advocate for Competition, at AQMCompetitionAdvocate@state.gov.
- (2) For all others, the Department of State Advocate for Competition at cat@state.gov.

(b) The Department of State's Acquisition Ombudsman has been appointed to hear concerns from potential offerors and contractors during the pre-award and post-award phases of this acquisition. The role of the ombudsman is not to diminish the authority of the contracting officer, the Technical Evaluation Panel or Source Evaluation Board, or the selection official. The purpose of the ombudsman is to facilitate the communication of concerns, issues, disagreements, and recommendations of interested parties to the appropriate Government personnel, and work to resolve them. When requested and appropriate, the ombudsman will maintain strict confidentiality as to the source of the concern. The ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of formal contract disputes. Interested parties are invited to contact the contracting activity ombudsman at ombuds@state.gov. For an American Embassy or overseas post, refer to the numbers below for the Department Acquisition Ombudsman. Concerns, issues, disagreements, and recommendations which cannot be resolved at a contracting activity level may be referred to the Department of State Acquisition Ombudsman at (703) 516-1696 or write to: Department of State, Acquisition Ombudsman, Office of Global Acquisitions (A/GA), Suite 1060, SA-15, Washington, DC 20520.

(End of provision)

SECTION 4 - EVALUATION FACTORS

- Award will be made to the lowest priced, acceptable, responsible offeror. The quoter shall submit a completed solicitation, including Sections 1 and 5.
- The Government reserves the right to reject proposals that are unreasonably low or high in price.
- The lowest price will be determined by multiplying the offered prices times the estimated quantities in “Prices - Continuation of SF-1449, block 23”, and arriving at a grand total, including all options.
- The Government will determine acceptability by assessing the offeror's compliance with the terms of the RFQ **to include the technical information required by Section 3.**
- The Government will determine contractor responsibility by analyzing whether the apparent successful offeror complies with the requirements of FAR 9.1, including:
 - Adequate financial resources or the ability to obtain them;
 - Ability to comply with the required performance period, taking into consideration all existing commercial and governmental business commitments;
 - Satisfactory record of integrity and business ethics;
 - Necessary organization, experience, and skills or the ability to obtain them;
 - Necessary equipment and facilities or the ability to obtain them; and
 - Be otherwise qualified and eligible to receive an award under applicable laws and regulations.

ADDENDUM TO EVALUATION FACTORS
FAR AND DOSAR PROVISION(S) NOT PRESCRIBED IN PART 12

THE FOLLOWING FAR PROVISION(S) IS/ARE PROVIDED IN FULL TEXT:

52.217-5 EVALUATION OF OPTIONS (JUL 1990)

The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

52.225-17 EVALUATION OF FOREIGN CURRENCY OFFERS (FEB 2000)

If the Government receives offers in more than one currency, the Government will evaluate offers by converting the foreign currency to United States currency using the exchange rate used by the Embassy in effect as follows:

- (a) For acquisitions conducted using sealed bidding procedures, on the date of bid opening.
- (b) For acquisitions conducted using negotiation procedures—
 - (1) On the date specified for receipt of offers, if award is based on initial offers; otherwise
 - (2) On the date specified for receipt of proposal revisions.

SECTION 5 - REPRESENTATIONS AND CERTIFICATIONS

52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (DEVIATION) (JAN 2026)

(a) Definitions. As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) Procedures.

(1) Covered telecommunications and video surveillance. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) FASCSA Orders.

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) Covered telecommunications equipment or services representations. By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror’s possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) FASCSA Representation. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit.

(e) Sudan certification. By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) Iran Representation and Certifications.

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov .

(g) Disclosure.

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil> .

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) Executive agency review of disclosures. The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)

52.204-26 [Reserved]

52.212-3 [Reserved]

52.229-11 TAX ON CERTAIN FOREIGN PROCUREMENTS – NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision—

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means—

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if—

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that—

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates “is” in paragraph (d)(1) of this provision, then the Offeror represents that—I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [*Offeror shall select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then—

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects “is” in paragraph (d)(1) and “partial or no exemption” in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. **For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.**

(End of provision)

652.225-70 ARAB LEAGUE BOYCOTT OF ISRAEL (AUG 1999)

(a) Definitions. As used in this provision:

Foreign person means any person other than a United States person as defined below.

United States person means any United States resident or national (other than an individual resident outside the United States and employed by other than a United States person), any domestic concern (including any permanent domestic establishment of any foreign concern), and any foreign subsidiary or affiliate (including any permanent foreign establishment) of any domestic concern which is controlled in fact by such domestic concern, as provided under the Export Administration Act of 1979, as amended.

(b) Certification. By submitting this offer, the offeror certifies that it is not:

- (1) Taking or knowingly agreeing to take any action, with respect to the boycott of Israel by Arab League countries, which Section 8(a) of the Export Administration Act of 1979, as amended (50 U.S.C. 2407(a)) prohibits a United States person from taking; or,
- (2) Discriminating in the award of subcontracts on the basis of religion.

(End of Provision)

ATTACHMENT A

SCOPE OF WORK

PROJECT: PREVENTIVE MAINTENANCE SERVICE OF LOW VOLTAGE SWITCHGEAR FOR US EMBASSY NEPAL

LOCATION: CHANCERY COMPOUND, MAHARAJGUNJ, KATHMANDU

I. GENERAL INFORMATION

The U.S. Embassy in Kathmandu, Nepal requires professional services to perform preventive maintenance on facility electrical switchgear. The objective is to ensure all systems covered under this agreement are maintained in optimal operational condition and in accordance with manufacturer and U.S. Department of State standards.

II. PROJECT REQUIREMENTS

The Contractor shall provide all labor, materials, tools, supervision, and equipment necessary to perform scheduled preventive maintenance as described herein. The goal is to minimize system malfunction, breakdown, and deterioration, ensuring reliable operation of all switchgear components.

III. EQUIPMENT DESCRIPTION

All work shall be performed on the following equipment (the specification of the equipment has been attached at the end of this document):

Description	Location	Manufacturer	Model	Serial Number
Switch, Transfer ATS-NOB	NOB, Generator Room	Cummins Power	BTPCD-575074	E060924041 SPEC A
Switch, Transfer ATS- 1 (E)	Utility Switchgear Room	ASCO Power tech	E07ATSC34000J 5XC	338988-001 FP
Switch, Transfer ATS- 2 (U)	Utility Switchgear Room	ASCO Power tech	E07ATSC34000J 5XC	338988-002 FP
LV CKT BKR, MAIN TRANS DISCONNECT	Transformer Yard	SIMENS	WWL3634012SZ	4001260317019
LV CKT BKR, UTL(E) Supply	Utility switchgear room	SIMENS	WLL3A34012SZ	4001260320000
LV CKT BKR, UTL(U) Supply	Utility switchgear room	SIMENS	WLL3A34012SZ	4001260320003
WL LOW VOLTAGE METAL ENCLOSED SWITCHGEAR	Utility switchgear room	SIMENS	WL, LOW VOLTAGE SWGR	26546-B00010

WL LOW VOLTAGE METAL ENCLOSED SWITCHGEAR	Transformer Yard	SIMENS	WL, LOW VOLTAGE SWGR	26546-B00020
CKT BKR, MDP BUS-TIE	NOB switchgear room	SIMENS	WLS2D320	4001260621011
CKT BKR, MDP (E)	NOB SWITCHGEA R ROOM	SIMENS	WLS2D320	4001260613021
CKT BKR, MDP(U)	NOB SWBD RM IN MDP (U)	SIMENS	WLS2D320	4001260621005
SWITCHBOARD NOB MDP (E)	NOB SWITCHGEA R ROOM	SIMENS	S3B REV A	17-59879-C00060
SWITCHBOARD NOB MDP (U)	NOB SWITCHGEA R ROOM	SIMENS	S3B REV A	17-59879-C00070
CKT BKR, MOLDED CASE	UTILITY BOILER SWITCHBOA RD	SIMENS	3VL7112RR3004 40 HNX3B100	771382006-1M- 0037
CKT BKR, MOLDED CASE	UTILITY BOILER SWITCHBOA RD	SIMENS	3VL7112RR3004 40 HNX3B100	771382006-1M- 0024
CKT BKR, MOLDED CASE	UTILITY BOILER SWITCHBOA RD	SIMENS	MNM	NSN
CKT BKR, MDP(E) BUS SUPPLY	UTILITY SWITCHGEA R ROOM	SIMENS	WLL2D320	4001260531032
CKT BKR, MDP(U) BUS SUPPLY	UTILITY SWITCHGEA R ROOM	SIMENS	WLL2D320	4001260621013
CKT BKR, HVAC MAINS	UTILITY CHILLED WATER ROOM	SIMENS	3VL81162RR300 AA0-NPX3B160	77-12420061M- 0008
CKT BKR, HVAC SUPPLY	UTILITY SWITCHGEA R ROOM	SIMENS	WLL2D310	4001260621018
CKT BKR, UTL BUS-TIE	UTILITY SWITCHGEA R ROOM	SIMENS	WLL3D330	4001260621012
CKT BKR, UTL(E) MAIN	UTILITY SWITCHGEA R ROOM	SIMENS	WLL3D340	4001260531030
CKT BKR, UTL(U) MAIN	UTILITY SWITCHGEA R ROOM	SIMENS	WLL3D340	4001260621014

WL VOLTAGE METAL ENCLOSED SWITCHGEAR	LOW PUMP ROOM	UTILITY CHILL WTR PUMP ROOM	SIMENS	SB3 REV A	17-26546-C00080
WL VOLTAGE METAL ENCLOSED SWITCHGEAR	LOW R ROOM	UTILITY SWITCHGEA R ROOM	SIMENS	SB3 REV A	17-26546-C00040
WL VOLTAGE METAL ENCLOSED SWITCHGEAR	LOW R ROOM	UTILITY SWITCHGEA R ROOM	SIMENS	SB3 REV A	17-26546-C00060

Note: Embassy maintain service manuals for all switchgear on-site

IV. GENERAL REQUIREMENTS

The Contractor shall provide comprehensive preventive maintenance services for low voltage electrical switchgear systems at the U.S. Embassy Kathmandu, Nepal. ***The electrical rating for Nepal is 3-phase 400Volts/1-phase 220Volts; 50Hz.*** Services include inspection, testing, adjustment, cleaning, and component replacement as required to maintain the systems in accordance with this Statement of Work (SOW) and manufacturer recommendations.

1. Contractor Responsibilities

- Provide all necessary managerial, administrative, and direct labor personnel, as well as all transportation, equipment, tools, supplies, and materials required to perform the work.
- Assign trained and qualified technicians to inspect, adjust, and perform scheduled preventive maintenance on all designated switchgear equipment.
- Ensure all work is performed in accordance with U.S. Department of State, OBO regulatory requirements.
- Provide comprehensive list of essential spare parts required for emergency and scheduled maintenance of the equipment.

2. Performance Standards

- All preventive maintenance work must be scheduled with the Embassy **Facility Manager (FM)** or **Contracting Officer's Representative (COR)** to avoid disruption of Embassy operations.
- The Contractor shall perform all services to the highest professional standards, ensuring reliability, safety, and compliance with all applicable codes and regulations.

3. Hours of Performance

- Standard services shall be delivered between 8:00 AM and 5:00 PM, Monday through Friday, excluding U.S. and Nepalese public holidays.
- No work shall be performed on U.S. Government or local holidays unless specifically authorized in writing by the COR.
- The Contractor must coordinate all work schedules with the FM/COR to minimize impact on Embassy operations and security.

4. Access and Security

- The Contractor shall designate a representative to supervise technicians and serve as the primary liaison with the Embassy.
- Contractor personnel shall be on-site only for contractual duties and must be escorted by Embassy staff at all times.
- The U.S. Government reserves the right to deny access to any individual. The Contractor must submit names, biographic data, and police clearances for all personnel at least five (5) business days prior to their first visit.
- Contractor vehicles require prior approval for entry. Vehicle details and justification must be submitted to the FM/COR at least one week in advance.
- Identity cards will be issued to approved Contractor personnel and must be displayed at all times while on site. These cards remain the property of the U.S. Government and must be returned upon contract completion or employee departure.

5. Standards of Conduct

- Contractor personnel must maintain high standards of conduct, appearance, and integrity, and comply with all Embassy rules and regulations.
- The Contractor is responsible for ensuring employees are properly uniformed and equipped with necessary personal protective equipment (PPE).
- The U.S. Government reserves the right to require removal of any employee for misconduct, security violations, or failure to comply with contract requirements.

6. Preventive Maintenance and Reporting

- The Contractor shall perform all preventive maintenance tasks as outlined in Exhibit A – Statement of Work, following manufacturer and OBO recommendations.
- The Contractor shall maintain an inventory of expendable and common parts on site, and replenish as needed.
- All repairs and replacement of major hardware components require prior written approval from the COR.
- The Contractor shall submit a maintenance schedule and checklist for COR approval prior to commencement of work.
- After each maintenance visit, the Contractor shall provide a signed checklist and a written report to the FM/COR, detailing work performed, test results, and any deficiencies or recommendations.

7. Tools, Materials, and Waste Disposal

- The Contractor shall provide all necessary tools, testing equipment, materials, and supplies for maintenance and safety.
- The Contractor is responsible for the proper disposal of all waste, including hazardous materials, in accordance with U.S. Government and Nepalese regulations. Proof of authorized disposal must be provided to the COR.

8. Insurance and Local Law

- The Contractor shall maintain all legally required insurance, including public liability and worker's compensation, for the duration of the contract.
- The Contractor is responsible for compliance with all local laws and regulations, including contract registration and payment of any applicable taxes.

9. QUALITY ASSURANCE PLAN (QAP)

Plan: This plan is designed to provide an effective surveillance method to promote effective Contractor performance. The QAP provides a method for the Contracting Officer's Representative (COR) to monitor Contractor performance, advise the Contractor of unsatisfactory performance, and notify the Contracting Officer of continued unsatisfactory performance. The Contractor, not the Government, is responsible for management and quality control to meet the terms of the Contract. The role of the Government is to conduct quality assurance to ensure that Contract standards are achieved.

Performance Objective	PWS Para	Performance Threshold
<u>Services.</u> Performs all services set forth in the performance work statement (PWS)	1 thru 12	All required services are performed and no more than one (1) customer complaint is received per month

Surveillance: The COR will receive and document all complaints from Government personnel regarding the services provided. If appropriate, the COR will send the complaints to the Contractor for corrective action.

Standard: The performance standard is that the Government receives no more than one (1) customer complaint per month. The COR shall notify the Contracting Officer of the complaints so that the Contracting Officer may take appropriate action to enforce the inspection clause (FAR 52.212-4, Contract Terms and Conditions-Commercial Items), if any of the services exceed the standard.

Procedures:

- If any Government personnel observe unacceptable services, either incomplete work or required services not being performed, they should immediately contact the COR.
- The COR will complete appropriate documentation to record the complaint.
- If the COR determines the complaint is invalid, the COR will advise the complainant. The COR will retain the annotated copy of the written complaint for his/her files.
- If the COR determines the complaint is valid, the COR will inform the Contractor and give the Contractor additional time to correct the defect, if additional time is available. The COR shall determine how much time is reasonable.
- The COR shall, as a minimum, orally notify the Contractor of any valid complaints.
- If the Contractor disagrees with the complaint after investigation of the site and challenges the validity of the complaint, the Contractor will notify the COR. The COR will review the matter to determine the validity of the complaint.
- The COR will consider complaints as resolved unless notified otherwise by the complainant.
- Repeat customer complaints are not permitted for any services. If a repeat customer complaint is received for the same deficiency during the service period, the COR will contact the Contracting Officer for appropriate action under the Inspection clause

10. Insurance Requirements

- Personal Injury, Property Loss or Damage (Liability). The Contractor assumes absolute responsibility and liability for any and all personal injuries or death and property damage or losses suffered due to negligence of the Contractor's personnel in the performance of this Contract. The Contractor's assumption of absolute liability is independent of any insurance policies.

- Insurance. The Contractor, at its own expense, shall provide and maintain during the entire period of performance of this Contract, whatever insurance is legally necessary. The Contractor shall carry the following minimum insurance:
- Public Liability Insurance:

Bodily Injury	\$\$..... per occurrence	\$\$.....Cumulative
Property Damage	\$\$..... per occurrence	\$\$.....Cumulative

- Workers' Compensation and Employer's Liability: Worker's Compensation Insurance. The Contractor agrees to provide all employees with worker's compensation benefits as required under local laws (see FAR 52.228-4 "Worker's Compensation and War-Hazard Insurance Overseas").

11. DELIVERABLES

The following items shall be delivered under this contract:

<u>Description</u>	<u>QTY</u>	<u>Delivery Date</u>	<u>Deliver to</u>
Names, biographic data, police clearance on Contractor personnel	1	5 days after contract award	COR
Certificate of Insurance	1	10 days after contract award	CO
Checklist signed by Contractor's employee	1	After completion of each maintenance service	COR & powersupport@state.gov
PMI/service Report	1	After completion of each service	COR & powersupport@state.gov
Invoice	1	After completion of each maintenance service	COR

V. Exhibit A - SCOPE OF WORK

1. General

- Provide all labor, supervision, materials, tools, and equipment to perform preventive maintenance on switchgear as specified.
- Ensure all personnel use appropriate PPE and follow site safety procedures.
- Coordinate all work with the COR and affected Embassy personnel.
- Submit a maintenance worksheet/checklist to the COR for review prior to work.
- Submit a discrepancy report immediately upon discovery of any condition that could result in equipment failure.
- Submit a test and inspection report to the COR within **10 business days** of completing work. All reports must be in English.

2. Emergency Support

- Provide emergency switchgear support within 48 hours of notification by the COR, at the agreed hourly rate.
- If discrepancies outside the SOW are found, provide a detailed report, Bill of Materials (BOM), price quote for repair labor, and estimated material lead time.

3. Scheduling

- Begin coordination of maintenance scheduling and required outages with the COR at least 90 days in advance.
- All shutdowns must be coordinated with Embassy personnel and performed during off-hours unless otherwise approved.

VI. MAINTENANCE PROCEDURES

1. Annual Preventive Maintenance

Visual Inspection

- Ensure clear working space and NEC-compliant clearance around all gear.
- Confirm electrical rooms are free of unrelated materials.
- Inspect all meters, breakers, controls, and remote monitoring equipment for proper operation.
- Check for loose parts, connections, and functioning indicator lights.
- Inspect for signs of overheating, moisture, or corrosion.
- Verify all filters and vents are clean and in place.
- Check anchor bolts and structural fasteners for tightness.
- Assess for abnormal noise or vibration.
- Confirm environmental conditioning is adequate.

Verification

- Compare metering measurements with a True RMS meter; calibrate as needed.
- Verify breaker sizing and labeling against as-built drawings; update “red line” drawings as necessary.
- Confirm operation of heaters, thermostats, and Modbus/PLC indicators.
- Ensure all required NFPA 70E safety equipment is available and in good condition.
- Follow manufacturer’s recommendations for additional maintenance.

Inspection, Cleaning, and Correction

- Schedule and coordinate power outages for cleaning.
- Document equipment condition with photos before and after service.
- Perform infrared thermography on all conductor connections and bus terminations.
- Enforce LOTO procedures before opening panels or exposing live parts.
- Inspect and clean bus bars, cable terminations, and insulators.
- Replace faulty batteries, fuses, or switches as needed.
- Torque all connections per manufacturer specifications.
- Exercise all breakers ten (10) times.
- Inspect and test all interlocks, control circuits, and mechanical indicators.
- Clean or replace air filters.
- Remove LOTO and re-energize equipment, confirming proper operation.
- Simulate utility outage to verify backup power operation.
- Report all incidents and near-misses to the COR and POSHO.

2. Equipment-Specific Procedures

a) Automatic Transfer Switches (ATS)

Applies to:

Switch, Transfer ATS-NOB

Switch, Transfer ATS-1 (E)

Switch, Transfer ATS-2 (U)

Annual Maintenance Tasks:

- i. Load Testing and Thermography**
 - Ensure the ATS is loaded to at least 40% of its rated current.
 - Perform qualitative infrared thermography (per CM-0002) on all accessible connections and components.
 - Transfer load to the backup generator and repeat thermography on the generator side.
- ii. Isolation and Safety**
 - Open and tag out both normal and alternate supply breakers.
 - Open ATS doors and verify absence of voltage phase-to-phase and phase-to-ground using an approved meter.
- iii. Cleaning and Inspection**
 - Clean the interior of the switch cubicle, conductors, and buswork using a vacuum and lint-free cloths.
 - Inspect all conductors for signs of overheating, mechanical damage, or moisture intrusion.
 - Inspect and clean all bus insulators.
 - Inspect all exposed ground connections; clean and tighten as needed, applying corrosion inhibitor.
- iv. Mechanical Checks**
 - Lubricate all moving parts and linkages per manufacturer's recommendations.
 - Check and torque all electrical connections to manufacturer's specifications.
 - Inspect and test heaters (if installed) for correct operation.
- v. Functional Testing**
 - Disconnect wires to each phase of the normal supply for under-voltage relay testing. Using a test voltage source, record relay pick-up and drop-out voltages. Reconnect wires after testing.
 - Disconnect operating mechanism control wires and operate the mechanism using a remote voltage source.
 - With the mechanism electrically held, use a micro-ohmmeter to check contact resistance from the normal supply cable connection to the critical load cable connection. Repeat for the emergency source.
 - Reconnect all control wires.
- vi. Component Checks**
 - Clean indicating lenses and replace lamps as needed.
 - Make minor repairs as possible; note any unaddressed issues in the work order.
 - Perform touch-up painting as required.
- vii. Restoration and Verification**
 - Restore the transfer switch to its normal position.
 - Remove tags and energize the normal supply breaker.
 - Place generator controls in automatic position.

- Simulate a power outage: open the normal power breaker and verify generator start and ATS transfer.
- Close the normal power breaker and verify ATS returns to normal and generator shuts down after cool-down.
- Confirm with affected occupants that normal services are restored.

viii. Documentation

- Record undervoltage relay pick-up and drop-out voltages.
- Record contact resistance for each phase on both normal and emergency sides.
- Include before-and-after photos in the final report.
- Record the status of the equipment with recommendations for necessary repairs and list of spare parts.

b) Low Voltage Circuit Breakers (Siemens WL and others)

Applies to:

All Siemens WL and molded case circuit breakers listed in the equipment schedule.

Annual Maintenance Tasks:

i. Operational Checks

- Manually open and close each circuit breaker.
- Remotely open and close each breaker using all available auxiliary devices.
- Test racking and interlock command sequences.
- Perform an overcurrent internal self-test and verify all function indicators.

ii. Safety and Preparation

- De-energize, tag, and lock out the circuit. Confirm absence of voltage before starting work.
- Schedule outages with operating personnel and review system operating procedures.

iii. Inspection and Cleaning

- Open the breaker compartment and visually inspect for loose connections, signs of overheating, or insulation damage.
- Clean the breaker and compartment using appropriate tools and materials.

iv. Documentation

- Record all test results in the component maintenance log.
- Report any equipment damage or deficiencies to the COR.
- Record the status of the equipment with recommendations for necessary repairs and list of spare parts.

c) Switchboards

Applies to:

All switchboards housing breakers or contactors of 450A or larger.

Annual Maintenance Tasks:

i. Panel Inspection

- Open all panels and visually inspect for loose connections, burned or frayed insulation.
- Verify no visible abnormalities or signs of overheating.
- Check surge protectors for faults or blown fuses.

ii. Cleaning

- Clean inside the board using a vacuum and lint-free cloths.
- Clean insulation/plastic parts with isopropyl alcohol.

iii. Reporting

- Submit a work order for any required corrections or repairs.
- Record all findings in the maintenance log.

Every Three Years:

i. Thermography and Inspection

- Ensure the unit is loaded to at least 40% of rated current.
- Perform qualitative infrared thermography (CM-0002).
- De-energize and lock out the switchboard.
- Enter from the rear and inspect for:
 - Proper anchoring and equipment grounding
 - Grounds or shorts
 - Evidence of overheating or arcing
 - Cable arrangements, supports, and insulators

ii. Mechanical Checks

- Torque all cable and bus connections to specification.
- Inspect fuse clips for tightness and alignment.
- Lubricate moving parts and mechanical devices.

iii. Testing

- Inspect and test all internal heaters, current, and potential transformers.
- Perform insulation resistance (megger) test; record results (should be >10 megohms).

iv. Restoration

- Reinstall any breakers removed for maintenance.
- Remove tags and return to service.
- Repeat thermography to confirm corrections.

v. Documentation

- Record all test results and corrective actions.
- Include before-and-after photos in the final report.
- Record the status of the equipment with recommendations for necessary repairs and list of spare parts.

General Notes for All Equipment:

- All procedures must follow manufacturer's recommendations and OBO Reliability Centered Maintenance (RCM) guidelines.
- All test equipment must be calibrated and suitable for the task.
- All findings, test results, and corrective actions must be documented and submitted to the COR within 10 business days.

VII. CONTRACTOR QUALIFICATIONS

- **Licensing:** The contractor must be a licensed electrical contractor working on electrical switchgear maintenance and repair.
- **Relevant Experience:** The contractor must demonstrate a proven track record in the maintenance, servicing, and repair of electrical switchgear systems of similar type and scale as those listed in this SOW.
- **Minimum Experience:** The contractor must have a minimum of five (5) years of documented experience in the maintenance and servicing of low voltage air circuit breaker (ACB) switchboards, busbar systems, Human-Machine Interface (HMI) systems, and related electrical distribution equipment.

- **Project References:** The contractor shall provide references for at least three (3) projects completed within the past five (5) years that involved preventive maintenance of low voltage switchgear systems, including ACBs, busbars, PLC- HMI, Transfer switch components, of comparable size and complexity.
- **Qualified Personnel:** All work must be performed by qualified, licensed electricians or technicians with specific training and experience in low voltage switchgear maintenance. The contractor shall submit resumes and certifications for all key personnel assigned to this project.

VIII. Contract Type

This contract will be of fixed price type. Interested contractors will be responsible to submit a detailed package with description of the entire works proposed & cost estimate that covers for all labor and material.

IX. Content Of Proposal from Contractors

The proposal from the contractor should include the following :

- Provide cost for the work specified in the Performance Work Statement
- Documentation on prior experience in related type work or project
- A work plan taking into account all work elements in the Performance Work Statement.
- Its plan to obtain all commercial licenses and permits required by local law. If offeror already possesses the locally required licenses and permits, a copy shall be provided.
- Documentation:
The contractor must submit evidence of licensing, relevant project experience, and personnel qualifications as part of their proposal. Failure to provide adequate documentation may result in disqualification.
- Plan of ensuring quality of services including but not limited to contract administration and oversight;
 - If insurance is required by the solicitation, a copy of the Certificate of Insurance(s), or
 - statement that the Contractor will get the required insurance, and the name of the insurance provider to be used.
- Emergency support plan, including:
 - Commitment to provide emergency assistance within 48 business hours of COR contact
 - Hourly rate for emergency support services

X. Project Schedule

- Work hours will be from 08:00am to 17:00pm Monday through Friday or as advised by the COR depending on the situation to do after hours or on weekend.
- Contractor should provide proposed work schedule and time frame to Embassy during submission of proposal.
- The start date will be determined by the Embassy and communicated to the Contractor before 2 working days on scheduled start.
- The shut down schedule will be during the holidays or off hours, which should be coordinated and pre-planned in coordination with the Facility Manager(FM) and Contractor Officer Representative(COR)
- Validity of proposal depends on vetting period. Notice to Proceed (NTP) will be issued once the contractor gets security vetting and insurance.
- The PMSC period of project is estimated to be 1 year with 4 option year.

- All the queries should be sent to US Embassy GSO Procurement Officer Mr. Mahesh Pudasaini (PudasainiMK@state.gov) and answers / clarification will be forwarded to all contractors for consideration in writing.
- The COR for the project will be the Electrical Engineer Supervisor and the two TEP members will be the BAS Engineering Technician and the Facility Manager.

XI. Selection Criteria

Contractors will be selected based upon their prior work experiences, cost estimates, availability of sufficient technical personnel to manage project and or specialty of work - specialized certifications, OEM authorizations and other unique qualifications.

XII. Payment Process

The contractor will be paid upon completion of each scheduled servicing. As this is an Annual PMSC, payments will be made once per year, subject to satisfactory completion of services as determined by the Government. Payment will be made 30 days after the submission of the bill. VAT shall be charged as applicable.

XIII. General Specification of Works:

- Once the contractor receives and accepts the awarded contract, the contractor will furnish the following details within twelve days from the issue of the signed contract which will be necessary for the site access:
 - List the names of all workers identified by contractor requiring site access with clearly filled Biographic Information (B.I.) form
 - List of all vehicle type, year, and license number that will require site access.
- Contractor shall furnish all required tools, low side materials and labor to perform and complete work
- The contractor should complete every work outlined in the “IV-GENERAL REQUIREMENT” and “V-SCOPE OF WORK”.
- Contractor is required to always keep work site neat and presentable condition.
- Contractor is required to submit WORK SAFETY PLAN before the commencement of the service or as requested by the POSHO and COR.
- Test and inspection report shall be submitted to as outlined in the DELIVERABLES of GENERAL REQUIREMENTS.

XIV. Quality Control

- A Contractor field supervisor that has a working knowledge of written and spoken English must be present at all times.
- A final inspection will be held with the COR and the site supervisor to inspect for quality of completed phase work.

XV. Safety

The Service Contractor shall take all reasonable and proper safety precautions to prevent death or injury to any person or damage to any property at the US Embassy Kathmandu, Nepal Compound and in particular all equipment used by the Service Contractor shall be used in such a manner and maintained so as to minimize the danger of accident, death, injury, loss or damage arising from the use of such equipment. In addition to relevant statutory requirements, standards and other provisions of this Contract, the Service Contractor shall have the following requirements:

1. Detail **Safety Plan and Working Methodology** must be submitted by the contractor after contract is awarded. POSHO will review and approve contractor's **Safety Plan and Working Methodology**.

2. The Contractor shall prepare and include an Activity Hazard Analyses (AHA) in the Safety Plan, for high hazard work prior to the start of work. POSHO will review and approve contractor's Safety Plan including AHA. Work will not start unless Safety Plan with AHA are approved by FM/POSHO. Minimum AHA are required for:
 - i. Use of Portable Ladder (Straight/Step-ladder)
 - ii. Electrical safety work by de-energizing the Generator (Lock-out/Tag-out)
3. The Contractor shall refer to the: ***U.S. Army Corps of Engineers Safety and Health Requirements Manual EM 385-1-1*** (http://www.publications.usace.army.mil/Portals/76/Publications/EngineerManuals/EM_385-1-1.pdf) and ***Occupational Safety and Health Administration (OSHA)*** online at www.osha.gov as the source of minimum standards for the safety and health program at post construction and service projects respectively.
4. More information on writing an AHA can be found in these sites:
 - i. AHA guide: https://www.safetyworksmaine.gov/safe_workplace/safety_management/hazard_analysis.html
 - ii. Berkeley educational website: <https://ehs.berkeley.edu/job-safety-analysis-jsas-listed-topic>
5. The Contractor shall be responsible for conducting the work in a manner that ensures the safety of employees and visitors at the US Embassy, and the Contractor's employees.
6. The Contractor shall be solely responsible for risk assessments, managing health, and safety issues associated with this project.
7. Contractor shall be responsible for any mishaps, injuries or accidents which occur during the project.
8. Any mishaps and near misses involving contractor's employees must be reported to the COR and FM/POSHO or A-POSHO within 8 hours.
9. Based on hazard assessments, Contractors shall provide or afford each affected employee personal protective equipment (PPE) that will protect the employee from hazards. At a minimum PPE shall consist of safety glasses and/or goggles for eye protection, hard hats for head protection, and closed toe shoes. Closed shoes with steel toe are mandatory for employees using power actuated tools like jack hammer, pick for excavation, axe for cutting trees, and for work that requires lifting heavy materials. Sandals or athletic shoes are not acceptable. PPE such as gloves, dust masks, ear buds, and face shield are recommended. These items must be provided at the Contractor's expense. All contractor personnel shall wear hard hats, safety glasses, ear-plugs, gloves, close-toes shoes and any other Personal Protection Equipment deemed necessary by the COR and Facility Manager/POSHO or A-POSHO.
10. Workers may use discretion if they feel unsafe in using the equipment in a hostile environment.
11. Any worker at an elevated location above 1.8 meters (6 feet), with the exception of a portable ladder, must be provided and utilize a safety harness with lanyard. These items must be in good condition and free from cuts and damages.
12. Scaffoldings should be provided by Contractors for working at heights. Fall harness should also be provided.
13. Welders must have proper PPE: welding goggles/mask, leather gloves, apron or welding jacket that is fire rated. Dedicated fire extinguisher should be on the vicinity of work site.

Fire curtain should be used not to expose welding sparks to others. Welding Blanket should be used to protect adjacent combustible materials on the job site that cannot be relocated. Contractor must submit Hot Work Permit (attached) before starting the hot work.

14. Contractor must use external Air-Blower machine with flexible duct to remove fumes produced during Hot Work in the work area.
15. All electrical equipment such as drilling machine, welding machine, portable grinder, power strips and electrical extension cords must be in good working condition, properly grounded and be free from any cuts/defects on the insulation cover. Three pin plugs should be used instead of live wire while plugging on the power outlets.
16. Use wooden or fiber ladders instead of metal ladders while working on electricity.
17. Contractor shall keep the site clean and organized on daily basis.
18. The COR or GTM reserves the right to stop the work if any unsafe contractor conditions are observed or encountered. The Embassy Escort may temporarily stop work for any unsafe action.
19. Contractor employee should attend mandatory safety briefing and training provided by the US Embassy Safety team before starting the project.
20. The Contractor must have a competent person on-site for inspection of equipment, training workers in the safe use of equipment and the recognition of hazards related to their use, supervision, and identifying and correcting unsafe work practices for high hazard work.
21. Job site should be barricade with "Caution tape".
22. Contractor is responsible for proper disposal of toxic substances where applicable.
23. The Service Contractor's personnel shall be knowledgeable with and adhere to all relevant occupational health and safety legislation and MSDS sheets.
24. All electrical equipment and associated materials for the Services Contract comply with UL requirements.
25. Follow all NFPA guidelines against fire, production of smoke or the venting of any noxious substances
26. Ensure that the Service Contractor's personnel comply with all safety procedures and requirements
27. Ensure that the Service Contractor's personnel are adequately trained and instructed in the safe and correct usage, handling and operation of materials and equipment relevant to the Services and provide reasonable proof of such to the US Embassy Facility Management staff on request.
28. Ensure the Service Contractor's personnel are certified as having completed occupational health and safety training and have been issued all the necessary Personal Protection Equipment (PPE) required for safe implementation of this contract.

Attachments:

1. *Cummins Power ATS*
2. *ASCO 7000S ATS*
3. *Sentron Switch Boards*
4. *JL 489 Insulated Case Circuit Breaker*
5. *Circuit Breaker- Molded Case*



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ATS.pdf



ASCO ATS 7000.pdf



Sentron Switch
Boards.pdf



JL 489 INSulated
Case Circuit Breaker.



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